

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 10, 2026
8:30 a.m./1:30 p.m.

9. ROSS SCROGGINS V. RANDY SCROGGINS

25FL0877

On June 29, 2026, Petitioner filed a Request for Order (RFO) seeking spousal support and property division orders. She filed her Income and Expense Declaration concurrently therewith. There are two Proofs of Service, both of which indicate only an “FL-300” was served. Respondent’s attorney was served on July 16th, prior to the filing of the RFO. Respondent himself was served on July 30th. Petitioner did not serve the Notice of Tentative Ruling or a blank FL-320.

Respondent filed a Responsive Declaration to Request for Order on September 3, 2026. However there is no Proof of Service for this document therefore the court has not read or considered it. Furthermore, this document is late filed pursuant to Civil Procedure section 1005(b) which states all opposition papers are to be filed at least nine court days before the hearing date. Section 12c states, “[w]here any law requires an act to be performed no later than a specified number of days before a hearing date, the last day to perform that act shall be determined by counting backward from the hearing date, *excluding the day of the hearing* as provided by Section 12.” Cal. Civ. Pro. § 12c. Section 1005(b) in conjunction with Section 12c would have made August 27th the last day for filing the responsive declaration therefore it is late filed and has not been read or considered by the court.

Despite the fact that Petitioner is the moving party, she also filed a Responsive Declaration to Request for Order, and an additional declaration on September 8, 2026. Assuming either of these documents was to be considered a reply declaration, reply papers are to be filed at least five court days before the hearing date therefore these documents are late filed and have not been read or considered.

This matter is dropped from calendar due to lack of proper service.

TENTATIVE RULING #9: THIS MATTER IS DROPPED FROM CALENDAR DUE TO LACK OF PROPER SERVICE.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT’S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON

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**THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE
8.05.07.**